

Legal Compliance Safety, Accountability and Leadership in Namibian Mining

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Why Legal Compliance Is a Business Imperative

The cost of non-compliance goes beyond fines — it shuts operations and creates personal criminal liability

5

categories of legal liability that can
attach simultaneously to a single
incident

Personal

criminal exposure for directors, senior
officers & supervisors under the Labour
Act

Zero

tolerance - courts have upheld dismissal
for a single serious safety violation

Namibia's Legal Framework for Safety Compliance

A hierarchy of laws — each level must be read with those above it

Constitution of Namibia

Supremacy clause — no law may contradict it (Art. 1(6))

Labour Act 11 of 2007

Chapter 4: employer H&S duties, statutory appointments, right to leave dangerous work

GRN 156 of 1997 — H&S Regulations

Regs 2–11: specific duties for mines, supervisors, safety reps

Minerals Act & Environmental Management Act

Sector-specific obligations for mining operations and environmental compliance

Common Law & Case Law

Courts interpret and fill gaps — binding on all parties

Five Forms of Legal Liability – All Relevant to Mining

A single incident can trigger multiple categories simultaneously

01

CIVIL / DELICT

Negligence causing harm

Requires fault + causation + damages. Employer pays compensation to injured party.

02

STRICT LIABILITY

No fault required

The act alone is enough. Environmental pollution, dangerous activities — intent is irrelevant.

03

VICARIOUS LIABILITY

Employer answers for employee

If the employee acted within the course and scope of employment, the employer is liable.

04

CRIMINAL LIABILITY

State prosecutes

Fines or imprisonment. Mens rea required — except where statute imposes strict criminal liability.

05

CORPORATE & STATE

Entities & officials

Directors, officers and government organs can be personally sued or prosecuted.

Civil & Delictual Liability – The Duty of Care

5 elements must all be proven. One missing element defeats the claim.

1

CONDUCT

A positive act or omission by the defendant (employer, supervisor, or employee).

2

WRONGFULNESS

The conduct was legally wrongful — it breached a duty of care recognised by law.

3

FAULT

Negligence (failure to meet the standard of a reasonable person) or intent. Strict liability is the exception.

4

CAUSATION

Factual (but-for) and legal causation. The harm must be a foreseeable consequence of the conduct.

5

HARM

Actual damage must be proven — physical injury, financial loss, or both.

CONTRIBUTORY NEGLIGENCE

Where the injured party contributed to their own harm, damages are apportioned under the **Apportionment of Damages Act**. NASC 2009/11: an employee's own negligence proportionally reduces the employer's liability.

THE REASONABLE PERSON TEST

- Was the harm reasonably foreseeable?
- Was there a legal duty to take precautions?
- Did the defendant fail to meet that duty?
- Is criminal liability also triggered?

Strict Liability – The Act Alone Is Enough

Intent or negligence does not need to be proven. The occurrence of the event is sufficient.

WHAT IT MEANS FOR MINING

No need to prove fault or intent — the employer is liable simply because the harm occurred.

This is particularly significant in Namibian mining because:

- Environmental law — polluter pays regardless of negligence
- Labour Act safety duties — breach = liability even without proof of intent
- Common law: actio de pauperie — owner liable for harm by domestic animals (extends to hazardous things in custody)
- Mines with dangerous activities face strict liability exposure by default

ENVIRONMENTAL SPILL

Chemical or mine slurry spill causing harm to third parties — the mine is liable even if all safety protocols were followed.

DUST / SILICOSIS

Occupational diseases caused by mining conditions — liability attaches where exposure standards are breached regardless of intent.

BLASTING DAMAGE

Property or personal damage from blasting operations — the operator is strictly liable for the inherently dangerous activity.

Vicarious Liability — When the Employer Pays for the Employee

Three requirements must all be met. Two recent Supreme Court decisions set the Namibian standard.

01

EMPLOYMENT RELATIONSHIP

An employer-employee relationship must exist at the time of the wrongful act.

02

DELICT COMMITTED

The employee must have committed all elements of a delict — conduct, wrongfulness, fault, causation and harm.

03

COURSE & SCOPE OF EMPLOYMENT

The act must be sufficiently connected to authorised work — even if done in a wrong or prohibited manner.

NAMIBIAN CASE LAW

NASC 14 [2015] — Crown Security v Gabrielsen

Guard shot client on duty. Employer liable: N\$8.64m awarded. Act "sufficiently related" to authorised work.

NAHCMD 666 [2023] — Boshoff v Muteka

Site supervisor, fatal collision en route to duty station. Employer liable — adverse inference for failing to produce evidence.

NASC 35 [2023] — Blaauw v Pallais

Employee deviated completely from mandate. Employer NOT liable — both subjective and objective tests must be satisfied.

Criminal & Corporate Liability — It Becomes Personal

The Labour Act makes senior officers personally liable where they connive in or permit a contravention

CRIMINAL LIABILITY

Unlike civil liability, the State prosecutes — fines and imprisonment are the consequence, not compensation.

KEY ELEMENTS

- Mens rea (guilty mind) required — except where statute creates strict criminal liability
- One act can trigger civil AND criminal liability simultaneously
- Labour Act: senior officer who connives or permits an offence is personally liable
- Proof standard: beyond reasonable doubt (higher than civil)

CORPORATE LIABILITY

A company cannot go to jail — but directors, officers, and statutory appointees face personal exposure.

WHO IS AT RISK

- CEO / managing director — named statutory appointee under GRN 156
- Safety Officer — personal liability for safety failures within their mandate
- Line supervisors — duty to prevent, not merely report
- Employees — liable for their own acts; fiduciary duty to employer

State Liability — Regulators Are Not Immune

The State Liability Act applies to government organs operating in the mining sector: inspectorates, licensing authorities, and state-owned entities

“

The State is vicariously liable for the wrongful acts of its employees acting within the course and scope of their employment — including Mines Inspectors, safety officers, and officials of state-owned mining entities.

RELEVANCE TO MINING

- Mines & Energy Inspectorate officials acting negligently can expose the State
- Regulatory approvals granted negligently may attract State liability
- Labour inspectors conducting inspections owe a duty of care
- Government-owned mining entities carry full State liability exposure

Sullivan v Government of Namibia NAHCMD 439 [2021]

PRACTICAL TAKEAWAY FOR MINE OPERATORS

Document all regulatory interactions, approvals, and inspections. Where a regulator's negligence contributes to an incident, the State may share liability — your records are both defence and evidence.

Who Is Legally Responsible? The Duty-Holder Hierarchy

GRN 156 Regulation 4 creates a chain of personal legal accountability

CEO / MD

Apex statutory appointee. Ultimate accountability for H&S compliance across the entire operation. Cannot delegate liability.

Safety Officer

Designated appointee. Personal liability for monitoring, reporting and implementing safety systems. Must be competent.

Line Supervisor

Must understand hazards of ALL work supervised. Enforce precautions. Provide training. Failure = personal criminal exposure.

Employee

Duty to report unsafe conditions, follow instructions, and not endanger colleagues. Liable for own deliberate or negligent acts.

S.132 DEFENCE — AND ITS LIMITS

An employer is not vicariously liable if they took **all reasonable steps** to prevent the contravention.

BUT — Namibian courts have held that:

- A written instruction alone is NOT sufficient
- Training, monitoring & enforcement must be proven
- One incident can destroy the defence if systems were inadequate

Comprehensive compliance programmes — documented, trained and enforced — are the only reliable defence.

The Supervisor's Legal Burden

GRN 156 Reg. 4 — supervisors carry personal criminal and civil exposure

GRN 156 REGULATION 4 — SUPERVISOR MUST:

- Be trained to understand the hazards associated with ALL work supervised
- Ensure all precautionary measures are implemented — not merely reported
- Provide employees with appropriate training, instructions and on-the-job guidance
- Enforce discipline — lack of enforcement is itself a disciplinary offence
- Not pass liability upward — duty runs both ways in the chain

Etosha Transport v Namiseb LC102/2010

Alcohol-impaired employee operating hazardous machinery. Dismissal upheld. Use of breath-analyser records accepted as evidence.

Bears v !Hoeab NALCMD 55 [2022]

Employer must prove actual impairment — taking alcohol alone does not equal being "under the influence." Zero-tolerance wording is insufficient on its own.

Namib Mills v Shigwedha LCA 34/2012

Reckless forklift driving — flagrant disregard of safety standards is a serious offence under Ch. 4, s. 41 Labour Act. Dismissal upheld.

GRN 156 of 1997 – What the Regulations Actually Require

Labour Act Health & Safety Regulations — verbatim obligations on every mine

Reg. 2(1)

EMPLOYER'S GENERAL DUTY

"Every employer shall provide and maintain, as far as reasonably practicable, a working environment that is safe and without risk to the health of employees."

Reg. 2(3)

HAZARD IDENTIFICATION

"The employer shall identify all hazards to the safety and health of persons at the workplace and take the necessary steps to eliminate or control such hazards."

Reg. 2(5)

SAFETY REPRESENTATIVE

"Every employer shall designate a competent person as safety representative with specific authority to monitor compliance and report to management."

Reg. 4

SUPERVISOR'S DUTY

"No person shall give an instruction to an employee to carry out any work unless that person is satisfied that the employee understands the hazards and precautionary measures required."

Recent Namibian Case Law Setting the Standard

Courts have consistently raised the bar — ignorance of the law is not a defence

VICARIOUS LIABILITY

NASC 14 [2015]

Crown Security v Gabrielsen

Security guard shot and paralysed a client while on duty. Employer held vicariously liable — N\$8.64 million awarded. Act was "sufficiently related" to authorised work.

MINING CONTEXT

NAHCMD 666 [2023]

Boshoff v Muteka

Site supervisor drove employer's vehicle toward his duty station — fatal collision. Employer vicariously liable. Adverse inference drawn when employer failed to produce evidence.

LIMITS OF LIABILITY

NASC 35 [2023]

Blaauw v Pallais

Employee deviated completely from her mandate. Employer NOT liable. Both subjective (employee intent) and objective (sufficient link) tests must be satisfied.

STATE LIABILITY

NAHCMD 439 [2021]

Sullivan v GRN

State held vicariously liable for wrongful acts of government employees on duty. Confirms that no government organ — including mining inspectorates and state-owned entities — is immune from delictual liability.

The Standard Test for Negligence in Namibian Law

Applied in every civil claim — courts measure conduct against this objective standard

1

FORESEEABILITY

Would a reasonable person in the same position have foreseen the possibility of harm?

If yes, a duty of care arises. The standard is objective — it does not matter what the defendant personally foresaw.

2

FAILURE TO ACT

Did the defendant fail to take steps that a reasonable person would have taken to prevent the harm?

Assessed against the probability of harm, severity of potential injury, cost of precautions, and utility of the conduct.

3

CAUSATION

Was the failure to act the cause of the harm suffered?

But-for test: would the harm have occurred but for the defendant's failure? Legal causation must also be established — harm must not be too remote.

Environmental Compliance & Mining Operations

Strict liability applies — breach triggers penalties, suspension of operations, and personal prosecution

KEY ENVIRONMENTAL LAWS

Environmental Management Act 7 of 2007

Environmental Impact Assessments (EIA) mandatory before mining commences. Ongoing monitoring obligations.

Minerals (Prospecting & Mining) Act 33 of 1992

Environmental compliance plan required. Minister may suspend operations for non-compliance.

Water Resources Management Act 11 of 2013

Prohibition on contamination of water sources. Strict liability for mining runoff.

Forest Act 12 of 2001

Clearance of vegetation requires permits. Rehabilitation obligations apply post-mining.

EMA PENALTIES (ACT 7 OF 2007)

- Fine up to N\$10 million OR 10 years imprisonment (individuals)
- Fine up to N\$25 million (juristic persons)
- Rehabilitation order — mine operator bears cost
- Operations may be suspended pending remediation

MINE OPERATOR OBLIGATIONS

- Obtain and maintain all environmental authorisations
- Submit quarterly environmental monitoring reports
- Implement closure and rehabilitation plans from day one
- Designate a responsible Environmental Officer

Non-Compliance: The Escalation Ladder

Each level is a legal trigger — not just an internal HR process

1

VERBAL WARNING

First-level infraction. Documented, not ignored. Pattern evidence in later proceedings.

2

WRITTEN WARNING

Formal record. Admissible in disciplinary hearings and court. Establishes knowledge of the rule.

3

FINAL WRITTEN WARNING

Last chance. Further breach = dismissal. Employer must show this was communicated clearly.

4

DISMISSAL

Lawful for serious H&S violations — even first offence. Namib Mills [2012]: recklessness warrants immediate dismissal.

5

MATERIAL BREACH & PROSECUTION

Beyond employment law — Labour inspector referral, Prosecutor-General, or civil action. Personal prosecution of supervisor or director.

The Section 132 Defence — and Its Limits

Labour Act s.132: the only statutory shield against vicarious liability — narrow and demanding

"An employer is not vicariously liable... if the employer took all reasonable steps to prevent the employee from contravening the provision in question."

Section 132, Labour Act 11 of 2007

WHAT "ALL REASONABLE STEPS" REQUIRES

- Written policies and procedures communicated to all staff
- Documented induction and ongoing H&S training
- Regular monitoring and enforcement — not just issuing instructions
- Disciplinary consequences consistently applied
- Record-keeping that can withstand court scrutiny

WHAT COURTS SAY IS NOT ENOUGH

- A written instruction alone — even if specific and clear
- Rules posted on notice boards but never enforced
- Training conducted once without refresher programmes
- Policies that exist on paper but not in practice
- Delegating responsibility without verifying compliance

Building a Compliance Culture: Three Pillars

Legal compliance is not a department — it is an operating discipline embedded across the organisation

01

SYSTEMS & DOCUMENTATION

- Statutory appointments formally documented and updated
- Policies, procedures and risk assessments reviewed annually
- Incident register maintained — all near-misses included
- Compliance audit trail sufficient to withstand court inspection

02

PEOPLE & ACCOUNTABILITY

- All duty-holders trained on their personal legal obligations
- Supervisors understand that ignorance is not a defence
- Clear reporting lines from shop floor to board level
- Disciplinary matrix enforced consistently — no exceptions

03

CULTURE & LEADERSHIP

- Board and executive visible commitment to safety compliance
- Safety performance included in executive KPIs
- Employees empowered to raise concerns without fear of detriment
- Legal counsel engaged proactively — not only after incidents

Key Takeaways for Leadership

What every executive, mine manager and legal officer must leave here knowing

1 Liability is personal

Directors, officers and supervisors face individual criminal and civil exposure — not just the company.

2 One incident — multiple heads of liability

A single safety failure can simultaneously trigger civil, vicarious, criminal and environmental liability.

3 The s.132 defence is narrow

A written instruction is not enough. Courts expect documented, trained, monitored and enforced systems.

4 Namibian courts are active

Recent decisions (2021–2023) confirm that the standard is rising. Case law is evolving — stay current.

5 Contractors do not insulate you

Delegating dangerous work to a contractor does not extinguish the duty of care. The principal may still be liable.

6 Document everything

Inspections, training, appointments, warnings — the paper trail is your defence. If it's not recorded, it didn't happen.

Thank You

Questions & Discussion

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KEY REFERENCES

- Constitution of Namibia (1990)
- Labour Act 11 of 2007
- GRN 156 of 1997 (H&S Regulations)
- Environmental Management Act 7 of 2007
- Minerals (Prospecting & Mining) Act 33 of 1992
- NASC 14 [2015] — Crown Security v Gabrielsen
- NAHCMD 666 [2023] — Boshoff v Muteka
- NASC 35 [2023] — Blaauw v Pallais
- NAHCMD 439 [2021] — Sullivan v GRN
- NALCMD 55 [2022] — Bears v !Hoeab
- NAHCMD 115 [2015] — Four Winds Logistics v GRN